

Chief Justice's Court

Case :- WRIT - C No. - 13788 of 2016

Petitioner :- Rakesh Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rama Shanker Yadav, Brijesh Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Niraj Tripathi

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

The relief which the petitioner seeks is in the following terms:

“Issue a writ order or direction in the nature of Mandamus commanding the respondent No. 3 to issue a Domestic Connection in favour of the petitioner at House No.121 B, Generalganj, Tehsil Sadar, District Mathura, forthwith.”

Sufficient provisions have been made in clause 4.4 and clause 4.8 of the UP Electricity Supply Code 2005 to cover the case.

Hence, we leave it open to the petitioner to pursue his application. The competent authority shall take action in accordance with law.

The petition is, accordingly, disposed of. There shall be no order as to costs.

Order Date :- 4.4.2016

RK

(Yashwant Varma, J) (Dr D Y Chandrachud, CJ)

Chief Justice's Court

C M Amendment Application No 142472 of 2016

Re:

Case :- WRIT - C No. - 13788 of 2016

Petitioner :- Rakesh Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rama Shanker Yadav, Brijesh Kumar
Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

The petition has been disposed on 4 April 2016. This application has been moved to correct the description of the house as set out in prayer clause so as to read as House No 1218 in place of 121B.

The amendment application is allowed. The amendment be carried out during the course of the day.

Order Date :- 10.5.2016

AHA

(Dr D Y Chandrachud, CJ)

(Yashwant Varma, J)

Chief Justice's Court

C M Correction Application No 134858 of 2016

Re:

Case :- WRIT - C No. - 13788 of 2016

Petitioner :- Rakesh Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rama Shanker Yadav, Brijesh Kumar
Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

In the order of this Court dated 4 April 2016, the reference to House

No 121B shall stand corrected to read as House No 1218.

The correction application is accordingly disposed of. There shall be
no order as to costs.

Order Date :- 10.5.2016

AHA

(Dr D Y Chandrachud, CJ)

(Yashwant Varma, J)